

		diligence’; ‘conclusory allegations will not withstand demurrer.’” (Ibid.) <u>Failure to Join Indispensable Parties</u> The FAC fails to name the current owners of the property, who are bona fide third party purchasers. Because the FAC seeks a preliminary and permanent injunction preventing the current owners from encumbering the property, those owners are interested parties who must be joined. Further, in a quiet title action, the plaintiff shall name as defendants all persons having adverse claims to the title. (Ranch at the Falls LLC v. O’Neal (2019) 38 Cal.App.5th 155, 172.) “A quiet title judgment cannot be entered in the absence of all parties with an interest in the property at issue.” (Id. at p. 173.) Plaintiff shall have 20 days leave to amend. Counsel for Defendant Dona Lee Lober to give notice.
111	Mana Investment Co. v. Nguyen, 2022-01287145	Shawn M. Olson (“Moving Counsel”) moves to be relieved as Counsel of Record for Defendants, Tony H. Nguyen and Susan Thanh Ngoc Le Nugyen. The motion is unopposed. California Rules of Court, rule 3.1362(d) states, in part: “The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case.” In addition, California Rules of Court, rule 3.1362(e) states, in part: “The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order.”

		Moving Counsel has stated a basis for permissive withdrawal under Rules of Professional Conduct, Rule 1.16. (ROA 43, 45, Judicial Council Form MC-052, Declaration in Support of Attorney’s Motion to be Relieved as Counsel, ¶ 2.) Moving Counsel has also utilized the Judicial Council Forms (MC-051, MC-052, and MC-053), and has satisfied the notice and declaration requirements of California Rules of Court, rule 3.1362. However, Moving Counsel has not lodged any proposed orders and has not shown proof of service of the same on the clients and all parties that have appeared in this action. Consequently, the motions to be relieved as counsel are DENIED, without prejudice. Moving Counsel to give notice.
112	Monarch Crest v. Sinai Investment, 2023-01319977	Plaintiff Monarch Crest, LLC (“Plaintiff”) moves pursuant to Code of Civil Procedure section 128.5 for sanctions in the amount of \$9,282.20 “on the grounds that Defendants engaged in frivolous and bad faith actions in filing their second Motion for Summary Judgment or Adjudication months after the deadline to do so had passed and they had failed to obtain or seek leave of court to file a second motion for summary judgment.” Defendants Marguerite Abdelmalek and Evergreen Realty Partners, Inc., dba Realty One Group West (“Defendants”) oppose the motion. First, the Court finds that Plaintiff complied with the 21 day safe harbor period prior to bringing this motion. (Code Civ. Proc., § 128.5, subd. (f)(1)(B).) Next, the Court finds that, while the motion for summary judgment was frivolous given the express terms of the parties’ stipulation, there is insufficient evidence to find that the motion was brought in bad faith. (Campbell v. Cal-Gard Sur. Services, Inc. (1998) 62 Cal.App.4th 563, 573–574 [“To impose sanctions under Code of Civil Procedure section 128.5, there must be a showing that” the moving party’s “action was meritless or frivolous and that it was pursued in bad